



SELECTBOARD
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

Minutes of August 30, 2021
Meeting held via ZOOM

The meeting convened at 6:30 p.m.

Present from Selectboard were Phil Dowling (Chair), Maureen Dempsey, and Teri Anderson. Others present were Bill Jablonski (Highway Superintendent), Chris LaPlante, Ryan Feyre, Carla Trosino-Laramy (Eversource), Michael Rosenburg (Eversource), Joshua Pacheco, Chris Wayne, Judee & David Wayne, Jeremy Durrin, Marilyn Witherell, Susan Bronstein, Steve Holt, Robin Wayne, Deborah Ford, Robby Armenti and Tom Martin (Board of Health), John Shaw, Rohail Aijaz (Eversource), Tom Jenkins (Tree Warden), Dale Kasal, Todd Alexander (Emergency Management Director).

Minutes were taken by Cheryl Provost.

- **PUBLIC HEARING** opened at 6:30 p.m. for petition from **NSTAR Electric Company doing business as Eversource and Verizon New England, Inc. "Install one jointly owned midspan pole on South Road"**
Carla Trosino-Laramy, designing technician for the poles in this petition from Eversource, explained she sent a sketch of the equipment. Two poles located on either side of the new pole to be replaced with taller poles and set deeper to address concerns from the abutter related to the berm. Questions and comments opened to the public. Reviewed language of the petition. Maureen reported, on behalf of Bill Jablonski, he has no issue with the plan. Discussion opened to floor. No public comment. Phil made a motion to approve the application for one jointly owned pole installation at South Road as described in the petition and sketch submitted by Eversource. Second by Maureen. Teri moved to amend the motion to include the Standard Conditions be attached to the order. Second by Phil. So moved by roll call vote:
Maureen-yes
Teri-yes
Phil-yes

Call to vote on motion as amended (to approve the application for one jointly owned pole installation at South Road as described in the petition and sketch submitted by Eversource, with the Standard Conditions attached to the order). So moved by roll call vote:

Teri-yes
Maureen-yes
Phil-yes

Hearing closed at 6:43 p.m.

Business meeting proceeded.

- Department updates
 - Highway Department, Superintendent Bill Jablonski reported:
 - replaced catch basin at elementary school play area
 - moving water at safety complex, related to installation of fire suppressant water tank
 - fixing washouts and pipes on dirt roads
 - helping at safety complex
 - Public Safety Complex Committee, Phil reported
 - the fire-suppression reservoir tank is installed. A leak was discovered in the pipe leading to the tank. Resolving that matter held up completion of the foundation, which was eventually poured today.
- Chris LaPlante came to seek permission to organize a bike race during the Fall Festival. Roads not to be closed. Police will lead race out on a warmup lap to Stage Road, where the race will start at Hampshire Regional High School. The race will go to the top of Tob Hill. Discussed the route and preliminary plans. Working with Jeremy Durrin and confirmed Northampton Cycling Club, an organization experienced in cycle racing, will sponsor the race. Phil moved to approve the bike race as described tentative to finalizing details and proof of insurance. Second by Maureen. So moved by roll call vote:
 - Teri-yes
 - Maureen-yes
 - Phil-yes

American Recovery Act, Phil reported he and Susan Bronstein registered to attend a seminar.

- Reviewed a Notice of Intent to Sell Land held under Chapter 61A at 188 North Road, owned by Leo and Anita Aloisi. Teri noted the request to waive Right of First Refusal does not state the remaining land will stay under Chapter 61A. She requests a written statement that remaining land will continue in Chapter 61A. Phil and Maureen agreed the document does not state they're selling remaining land. Teri explained they do not discuss the remaining parcel so is not clear. Waiting for input from Conversation Commission. Discussion continued to September 13.
- Marilyn Witherell requested an extension to her tag sale permit. Current one expired August 29. Phil moved to approve a tag sale permit for Marilyn Witherell for 30 days (September 29). Second by Maureen. So moved by roll call vote:
 - Teri-yes
 - Maureen-yes
 - Phil-yes
- PUBLIC HEARING opened at 7:00 p.m. for petition from **NSTAR Electric Company doing business as Eversource and Verizon New England, Inc. "Install new joint owned poles along Mine Road from the intersection of Main Road. Also, to lay and maintain underground laterals, cables, and wires in the above or intersecting public ways"**

Michael Rosenburg present from Eversource to answer any questions. Joshua Pacheco present from Eversource and described the pole placements. On the crossroads of Mine Road and Main

Road running electrical utilities down. There presently is none, only communication lines. The current spacing of the poles does not support the equipment. Installing two mid-span poles between poles 1 and 2 and 3 and 4 to support a conductor then coming down with three phases. M Rosenberg explained currently the feed is from Southampton and is on a right of way over private property that cuts from Mine Road to Mineral Road. Moving the lines to mitigate the risk. Is an initial step to get away from the right of way so maintenance can be performed safer by roadside and for future tie capability into three-phase. Teri asked if three phase is standard these days. M Rosenberg replied it allows a three-phase back feed ability. Discussion opened to the public. Discussion ensued regarding fires caused by three-phase wires coming down. M Rosenberg recapped the project for abutters arriving late to hearing. J Wayne asked if the poles will extend from Main Road to Mineral Road. M Rosenberg confirmed yes. Phil motioned to approve the pole as presented on Mine Road with the standard conditions attached. Second by Maureen. So moved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

J Wayne asked for timeline and if there would be an outage during the transfer. M Rosenberg replied completion will be year-end and confirmed a brief outage would occur during cut over stage and residents, with advanced notice.

Hearing closed at 7:25p.m.

Business meeting continued with updates:

- Joint meeting with Board of Health on matters of indoor mask wearing and recreational use of town hall. Tom Martin reported it's been three months since the state of emergency was lifted. Within that period, there are two cases in Westhampton, with transmissions in private settings. Upon lifting the state of emergency, the board's recommendations were for mask wearing in municipal buildings, unless working alone. All other activities allowed with mask wearing. They now have a new member on the board and meeting for the first time Saturday. Tom is not prepared to make any changes to their recommendations without holding a meeting with the new member. Robbie agreed. Brief discussion ensued regarding current status and mask recommendations. Robbie acknowledged Dale Kasal requested use of town hall for pickle ball. Discussed approval of Scouts use of town hall. Phil mentioned the floor refinishing. Phil moved to authorize use of town hall by the scouts and pickle ball players considering they all wear masks and social distancing. Second by Maureen. Cheryl made recommendation to move on approval of town hall use by scouts, having been an agenda item, and to hold on approval of pickle ball until posted on agenda and receipt of proposal and schedule. Phil moved to amend as suggested. Second by Maureen. So moved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

Robbie reported the Board of Health will meet on Saturday and expect to have recommendations on public buildings. She requested the board be included on the next agenda. John Shaw was recognized. He asked the Board of Health understand the difference between a mandate and

recommendation. So noted. Tom asked if there are any public concerns that brought the discussion of masks up. None known. Phil called for vote on motion as amended. So moved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

- Department and Boards updates:

- Zoning Bylaw Review Committee, John Shaw reported the committee is moving forward with the Zoning Bylaw Revision using the current floodplain maps, as the updates are not complete yet. Seeking approval to name the Building Commissioner/Zoning Enforcement Officer as the Floodplain Administrator in the bylaw. When the maps are changed they will have to be updated in the bylaws, requiring another town meeting approval. Teri suggested inserting, “or any date the maps are updated by FEMA” to avoid the requirement. Phil moved to designate the Building Commissioner/Zoning Enforcement Officer as the Floodplain Administrator. Second by Teri. So moved by roll call vote:

Teri-yes

Maureen-yes

Phil-yes

Discussed timeline to present proposed changes to town counsel, the public, and the Selectboard.

- Tree Warden, Tom Jenkins reported his disapproval of Tree removal conducted by Eversource. He explained as Tree Warden. He described the process for tree hearings. Eversource plans described tree trimming, not tree removals. Tom described an incident where he told Eversource he disapproves removal of healthy trees. He found their workers doing full removals and stopped the work. He described incidents where over past three years Eversource agreed to Tom’s requirements then did what they want. State law prohibits removal or damaging of trees and the Tree Warden may fine \$500. Tom has not issued fines and is considering fining \$500 for each incident (tree). His goal is for Eversource to come into compliance. Phil supports Toms plan. Teri suggested contacting Eversource in writing, written enforcement. Tom replied he believes this is beyond additional warnings. Teri suggested he document that. Tom asked if he should contact town counsel prior to issuance of fines. Phil replied not necessary, others concurred. Discussion ensued regarding a document of town roads Tom can use as reference. Bill has a copy. Tom reported he approved removal of trees for the Mine Road pole installations.
- Administrative Assistant Search Committee, Maureen reported the committee is meeting Thursday to review applications.
- Phil reported he and Susan Bronstein registered for a webinar for the American Recovery Act.

- Phil motioned to approve the Comprehensive Emergency Management Plan as submitted by

Todd Alexander. Second by Teri. So moved by roll call vote:

Teri-yes

Maureen-yes

Phil-yes

- Review draft policies for Remote Work & Telecommuting and Electronic Communications postponed.
- Review Standard Form of Contract-Sampson & Weston
- Schedule all boards meeting postponed
- Correspondence reviewed:
 - Bill Randolph request to be appointed to Conservation Commission. Phil motioned to appoint Bill Randolph to the Conservation Commission. Second by Maureen. Discussion ensued regarding appointment procedure. So moved by roll call vote:
Maureen-yes
Teri-yes
Phil-yes
 - John Bowler regarding speeding in Westhampton; added to next agenda for discussion.

Reviewed minutes of:

August 16, 2021. Phil motioned to approve minutes as written. Second by Maureen. So moved by roll call vote:

Teri-yes

Maureen-yes

Phil-yes

August 23, 2021. Phil motioned to approve minutes as written. Second by Maureen. So moved by roll call vote:

Teri-yes

Maureen-yes

Phil-yes

August 23, 2021, executive session. Phil motioned to approve minutes as written. Second by Maureen. So moved by roll call vote:

Teri-yes

Maureen-yes

Phil-yes

Warrants were reviewed and approved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

Payroll: \$83,566.08
Vendor: \$169,474.08

Next meeting: 7:00 p.m., September 13, 2021
Adjourned meeting at 8:30 p.m.

Approved by vote of the Selectboard at virtual meeting held September 13, 2021.

Phil Dowling
Maureen Dempsey
Teri Anderson